

23NWCV02182 23NWCV02182

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-17

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Case Number: 23NWCV02182 Hearing Date: September 17, 2026 Dept: P

HELEN MARIE STEPHENS v. BIG

LOTS, INC., ET AL.

CASE NO.: 23NWCV02182

HEARING: 09/17/2026 @ 9:30 AM

#11

TENTATIVE ORDER

Plaintiff Helen Marie Stephens's motion to set aside dismissal is GRANTED.

Moving party to give notice.

Plaintiff Helen Marie Stephens (Plaintiff) moves to set aside the dismissal entered on February 5, 2026.

Background

On July 13, 2023, Plaintiff filed this premises liability action against Defendants Big Lots Stores, LLC, erroneously sued as Big Lots, Inc. (Defendant), Big Lots Store 1910, Manager Celine, and Does 1 through 50. The form complaint alleges that Plaintiff sustained injuries on July 15, 2021, after slipping and falling on a clear liquid on the floor at Big Lots Store 1910, located at 5227 Lakewood Blvd., Lakewood, CA 90712. The complaint asserts two causes of action: (1) general negligence and (2) premises liability.

On June 5, 2024, Plaintiff filed Requests for Dismissal as to Defendants Manager Celine and Big Lots Store 1910.

On September 11, 2024, Defendant filed a Notice of Filing of Bankruptcy indicating that Defendant filed for protection in bankruptcy under Chapter 11. This action was automatically stayed pursuant to the bankruptcy.

On February 5, 2026, during a Non-Appearance Case Review Re: Bankruptcy, the Court dismissed this action without prejudice after no further status reports were received.

On August 20, 2026, Defendant filed a Status Report Re: Bankruptcy noting that this action remains stayed.

Legal Standard

Code of Civil Procedure section 473, subdivision (b) provides for discretionary and mandatory relief for mistake, inadvertence, surprise, or excusable neglect.

Pursuant to Code of Civil Procedure section 473, subdivision (d), “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

Discussion

Plaintiff moves to set aside the Dismissal entered on February 5, 2026.

Plaintiff moves for mandatory relief on the grounds that Plaintiff’s counsel “mistakenly believed that I did not need to attend the “Non-Appearance Case Review Re: Bankruptcy” hearing.” (Osborne Decl., ¶ 9.)

Plaintiff additionally moves pursuant to Code of Civil Procedure section 473, subdivision (d) on the grounds that the Dismissal Order is void or entered in excess of the Court’s jurisdiction.

Here, the Court agrees the Order dismissing this action is void. "The law is clear that a nonbankruptcy court may not dismiss but may only stay an action in which a defendant has filed for bankruptcy." (Traweek v. Finley, Kumble, Wagner, Heine, Underberg, Manley, Myerson & Casey (1991) 235 Cal.App.3d 1128, 1135.) "Judicial proceedings in violation of the automatic stay are void. [Citation.] Accordingly, the trial court had no power to dismiss the case, and the dismissal was void." (Sindler v. Brennan (2003) 105 Cal.App.4th 1350, 1353 [noting that a motion to set aside under Code of Civil Procedure section 473, subdivision (d) is the correct procedure to challenge a dismissal during a bankruptcy stay].)

Accordingly, Plaintiff's motion to set aside the dismissal is GRANTED. This action remains stayed pursuant to Defendant's bankruptcy.